

Article 6: License Violations and Penalties in Michigan

Article 6 of the Michigan Occupational Code (§339.604) is all about violations and penalties. In Michigan you can't practice a regulated profession without a license and doing so can get you into a lot of trouble. If you're caught practicing a regulated profession without a license it's a misdemeanor offense. First-time violations carry a \$500 fine and/or 90 days imprisonment. Subsequent violations have a penalty of \$1,000 and/or one year imprisonment.

Article 6 calls out the following violations as punishable by one or more specific penalties:

- Deceitful or fraudulent actions in order to obtain a license
- Deceitful or fraudulent business practices
- Violation of conduct rules
- Lack of good moral character
- Gross negligence
- False advertising
- Incompetence
- Failure to comply with previous penalties (such as citation or final order)
- Failure to appear when subpoenaed
- General rule violations
- Knowingly aiding an unlicensed person in business practice

For any of these violations, one or more of the following penalties can be assessed (§339.602):

- License limitation
- License suspension
- License denial
- License revocation
- Fine of up to \$10,000
- Censure
- Probation
- Restitution